Terri Tracking Service Agreement

Terms and Conditions

TERRI TRACKING SERVICE AGREEMENT

Revised Client-Ready Terms & Conditions

1. Parties and Definitions

1. "The Client" means the party whose details appear on the Subscriber Application Form and who is bound by this Agreement upon acceptance.

2. "Terri Tracking" or "Terri Technologies" means Terri Technologies and any authorised installation centre, service provider, recovery partner, contractor or regional partner appointed by it.

3. "The Fee" means the collective fees for installation, airtime subscriptions, data usage, monitoring, messaging and other applicable charges as specified in the Subscriber Application Form, quotation or Terri Tracking's prevailing tariffs.

4. "The Unit" means the Terri Tracking hardware device installed in a Vehicle.

5. "The Service" means the tracking, monitoring and/or Fleet Management services made available by Terri Tracking.

6. "Vehicle" means the motor vehicle in which the Unit is installed.

7. "Installation Centre" means a Terri-authorised installation or service centre.

2. Purchase Specifics

1. The Service is intended to reduce the risk associated with vehicle theft and to assist with monitoring and recovery, but does not eliminate such risk and does not constitute insurance.

2. The Service depends on telecommunications networks, GPS technology, electricity, internet connectivity and other systems that may be outside Terri Tracking's control.

3. Terri Tracking may use authorised third-party service providers, installation centres and recovery partners in providing the Service.

4. Terri Tracking may change its fees from time to time upon giving not less than one month's written notice, subject to applicable law.

3. Term

1. This Agreement shall continue for an initial period of 12 months and thereafter indefinitely until terminated in accordance with this Agreement.

2. After the initial 12-month period, either party may terminate by giving the other three (3) months' written notice.

3. Termination does not release the Client from amounts accrued or otherwise lawfully payable before the effective date of termination.

4. Where the Client terminates during the initial 12-month term other than for a material breach by Terri Tracking that remains unremedied after written notice, Terri Tracking may charge an early termination amount stated in the quotation, Subscriber Application Form or prevailing termination tariff, together with outstanding fees and applicable de-installation charges.

4. Installation and Monthly Subscription Fee

1. As consideration for Terri Tracking undertaking to provide the Service, the Client shall pay the applicable Fee and any increases thereto, monthly, quarterly, half yearly or annually, as agreed.

2. The first Fee, including the installation fee where applicable, shall be paid on the date of acceptance unless otherwise agreed in writing.

3. The Service may only be activated once the Unit has been installed, programmed, enabled and is functioning to the manufacturer's specifications and the required account and payment arrangements have been completed.

4. De-installation, re-installation or relocation of a Unit shall be charged at Terri Tracking's prevailing rates unless otherwise agreed in writing.

5. Billing

1. Invoices will be sent to the email address or physical address specified on the Subscriber Application Form. The Client must ensure that this information remains accurate and up to date. Failure to receive an invoice because the Client supplied incorrect or outdated details will not be accepted as a valid reason for non-payment.

2. Payment is due on the billing date. If payment is not received within 30 (thirty) days of the billing date, the Client's account and Unit may be blocked and access to tracking, monitoring and Fleet Management services suspended until payment is received in full.

3. In the event of late payment, interest shall accrue on the outstanding balance from the due date until payment in full at Terri Technologies' prevailing rate, subject to applicable law.

4. Should any amount remain unpaid for more than 45 (forty-five) days from the billing date, the account may, in addition to any suspension under clause 5.2, be flagged for termination and/or legal escalation. The Client remains liable for the outstanding balance, accrued interest, applicable recovery costs and any reconnection fee payable before reactivation.

5. Where the Unit is de-activated as a result of non-payment, the Client shall settle all outstanding balances and the applicable reconnection fee before reconnection.

6. Terri Technologies reserves the right to alter the fee structure in line with tariffs imposed on it, or alterations made to its tariffs, by its service providers. The Client will be notified at least one month in advance in writing where notice is required.

7. Should there be a change in currency, pricing may be quoted in USD. Where the currency ceases to be legal tender or becomes impractical for payment of imported components or services, pricing may be based on the USD equivalent, subject to applicable law.

8. Vehicles on the Terri Tracking Fleet currently have a 300MB monthly GPRS limit. For each additional MB over this limit, the Client shall be charged at Terri Tracking's current rates. Terri Tracking may review the applicable allowance and rates from time to time.

9. If payment is made by Debit or Stop Order, the Client will be in breach if it cancels the debit or stop order without written consent from Terri Tracking or changes banking details without sufficient written notice.

10. Additional charges will be levied for travel expenses and labour where repairs and replacements take place outside Harare and/or are carried out on weekends, public holidays or outside standard working hours.

6. Hardware and Warranty

1. The parties agree that the Service cannot be provided unless an Installation Centre installs the Terri Tracking Unit in a Vehicle and the Unit is programmed, enabled and functioning to the manufacturer's specifications.

2. Subject to compliance with the preceding clause, the Unit, excluding consumables such as backup batteries, and its installation shall carry a 13-month warranty against faulty materials or faulty workmanship by Terri Tracking.

3. The warranty does not cover fair wear and tear, consumables, misuse, accidental damage, water damage or damage arising from tampering, modification, unauthorised relocation or interference.

4. Any maintenance or repairs must be carried out at an Installation Centre and will be chargeable if outside the warranty period or excluded from the warranty.

5. The warranty is limited to an obligation on the part of Terri Tracking to repair or replace the Unit in question, subject to the terms of the warranty.

6. The warranty applies to the Unit, and the Unit may be moved from an old Vehicle to a new Vehicle, but a de-installation and re-installation fee shall be charged.

7. Unless the Subscriber Application Form or quotation expressly states otherwise, the Unit remains the property of Terri Technologies. The Client shall not sell, pledge, modify, relocate, interfere with or dispose of the Unit.

8. Where a Unit is lost, damaged beyond economical repair, unlawfully removed or not returned when required, Terri Tracking may charge the applicable replacement, repair, recovery and installation costs, subject to applicable law.

7. Client's General Obligations

1. The Client keeps the Terri Tracking emergency numbers handy and contacts Terri Tracking as soon as possible after a loss. The emergency numbers must not be visible within the Vehicle.

2. If the Client becomes aware, or is made aware by Terri Tracking, that the Unit is not operational, the Vehicle must be taken to an Installation Centre immediately. If the Client fails to do so, Terri Tracking may suspend the Service and will not be liable for a failed recovery to the extent caused or contributed to by the Unit being non-operational.

3. The Client must notify Terri Tracking prior to conducting a test, so that the test is expected.

4. The Client is responsible for arranging a backup battery replacement every 3 years.

5. The Client must provide Terri Tracking and its authorised technicians reasonable access to the Vehicle for installation, inspection, maintenance, repair, de-installation and re-installation.

6. The Client warrants that it has the lawful authority to request installation and tracking of the Vehicle and is responsible for obtaining any required authority, notice or consent relating to drivers, employees or other authorised users.

7. The Client is responsible for maintaining the confidentiality of platform login credentials and for activity undertaken through accounts issued to or authorised by the Client, except to the extent caused by Terri Tracking's proven security failure.

8. Platform Use and Security

1. The Client may use the tracking platform only for lawful purposes and in accordance with Terri Tracking's instructions.

2. The Client shall not reverse engineer, interfere with, damage, bypass security controls, attempt unauthorised access to, or misuse the platform or Unit.

3. The Client shall not resell, sublicense or provide access to the Service to third parties without Terri Tracking's written consent.

4. Terri Tracking may suspend access where it reasonably believes that an account has been compromised, misused or used unlawfully.

5. The Client shall also comply, and shall ensure that its users comply, with the Terri Tracking Acceptable Usage Policy, which forms part of this Agreement.

9. Exclusion of Liability and Service Limitations

1. Subject to rights and liabilities that cannot lawfully be excluded or limited, Terri Tracking shall not be liable for indirect, consequential or special loss, loss of profits, contracts, business, anticipated savings, use or goodwill arising from the provision of the Service or the supply or functioning of a Unit.

2. Terri Tracking shall not be liable merely because a Unit was installed or the Service was subscribed to for theft, loss or damage to a Vehicle, or for a failure to recover a Vehicle, except to the extent liability cannot lawfully be excluded.

3. Terri Tracking shall not be responsible for interruptions, delays or inaccuracies caused by mobile network operators, internet service providers, GPS limitations, power failures, third-party systems or circumstances outside Terri Tracking's reasonable control.

4. Terri Tracking does not warrant uninterrupted, error-free or continuous availability of the Service. GPS accuracy and location updates may be affected by buildings, underground areas, terrain, network coverage, signal obstruction, equipment condition and other factors.

5. To the maximum extent permitted by applicable law, Terri Tracking's aggregate liability arising from the Service shall be limited to the subscription fees actually paid by the Client for the Service during the six months immediately preceding the event giving rise to the claim, excluding liabilities that cannot lawfully be limited.

10. Recovery Services

1. Due to the numerous variables involved, Terri Tracking does not guarantee that the Service will lead to a recovery. The Client acknowledges that the Service is intended to reduce the risk of loss but will not eliminate such risk.

2. The Fleet Management Unit will be barred from roaming GPRS functionality. Requests for roaming will only be accepted where a fee is charged and paid upfront. The only roaming functionality that comes standard is for use by the control room to effect a recovery if the Vehicle is stolen. Any use of roaming functionality by the Client will be charged for.

3. Terri Tracking, using its regional Terri Tracking partners, will attempt to recover stolen Vehicles passing outside the territory, but this may incur additional costs according to Terri Tracking's standard tariffs at the time of recovery.

4. Terri Tracking may rely on police, law enforcement, telecommunications providers, recovery agents and other third parties in connection with recovery and does not control their actions or response times.

5. Recovery services are not a substitute for comprehensive vehicle insurance.

11. Installation and Vehicle Condition

1. Installation of hardware does not affect the operation of the Vehicle, its computers or electrics. However, if it is proved on reasonable technical evidence that the installation caused a malfunction, Terri Tracking will rectify the installation-related problem at no cost to the Client, subject to applicable law.

2. If a reported fault was not caused by the hardware or its installation, the Client will be liable for costs reasonably incurred.

3. Terri Tracking is not responsible for pre-existing faults, vehicle modifications, aftermarket equipment, defective wiring or electrical systems, or faults not caused by Terri Tracking.

12. Data Protection and Privacy

1. Terri Tracking may collect and process information reasonably required to provide, administer, secure, support and improve the Service, including account, Vehicle, location, trip, usage, billing and technical information.

2. The Client is responsible for ensuring that its use of the Service to monitor drivers, employees or other individuals complies with applicable privacy and data protection requirements and that required notices, permissions or consents have been obtained.

3. Terri Tracking may disclose information where reasonably necessary to provide the Service, conduct recovery, use authorised service providers, comply with law, respond to lawful requests or protect its rights and systems.

4. Terri Tracking will take reasonable measures to protect information in its possession, but no electronic system can be guaranteed to be completely secure.

5. Further detail on how Terri Tracking collects, uses, retains, shares and protects information, and on the rights of individuals, is set out in the Terri Tracking Privacy Policy, which forms part of this Agreement.

13. Suspension and Default

1. Terri Tracking may suspend the Service where the Client fails to pay amounts due, breaches this Agreement, tampers with or misuses the Unit, misuses the platform, provides materially false information, or where suspension is reasonably necessary to protect Terri Tracking, its systems or third parties.

2. Suspension does not waive or reduce amounts already due or accruing under this Agreement unless Terri Tracking agrees otherwise in writing.

3. If the Client or an intermediary on the Client's behalf fails to timeously pay any amount due, or, in Terri Tracking's reasonable opinion, abuses or misuses the Service, Terri Tracking may exercise its rights under this Agreement, including termination and recovery of amounts lawfully due.

4. Terri Tracking may cancel this Agreement forthwith for material default, subject to applicable law, or claim specific performance, without prejudice to its right to claim damages or other lawful remedies.

5. Default by the Client will, for the duration of such default and at the option of Terri Tracking, suspend Terri Tracking's obligations to the extent permitted by law.

14. Client Indemnity

1. To the extent permitted by law, the Client indemnifies Terri Tracking against reasonable claims, losses, costs and expenses arising from the Client's unlawful or unauthorised use of the Service, misuse of the platform, unauthorised monitoring of individuals, sharing of access credentials, or breach of the Client's obligations under this Agreement.

15. Force Majeure

1. Terri Tracking shall not be liable for delay or failure to perform to the extent caused by circumstances beyond its reasonable control, including network or internet outages, power failures, natural disasters, war, civil unrest, strikes, government action, regulatory changes, border restrictions, telecommunications failures and failures of third-party service providers.

16. Termination and Consequences

1. Upon termination, all amounts accrued and lawfully payable to Terri Tracking become due.

2. Where applicable, the Client shall make the Vehicle available for de-installation and shall pay the applicable de-installation charges.

3. Where the Unit remains Terri Technologies' property, the Client must return or make it available for removal as reasonably required by Terri Tracking.

4. Termination does not affect provisions intended to survive termination, including payment obligations, liability limitations, indemnities and dispute provisions.

17. Debt Recovery

1. Terri Tracking shall be entitled to charge the Client for costs reasonably incurred in collecting amounts due, including debt collector, tracing and legal costs to the extent recoverable by law.

2. Where a Unit is de-activated as a result of non-payment, all outstanding amounts, applicable interest and reconnection fees must be settled before reactivation.

3. Any right of Terri Tracking to retain possession of a recovered Vehicle shall be exercised only to the extent permitted by applicable law and any rights of registered owners, financiers, insurers, law enforcement authorities or other third parties.

18. Notices

1. Formal notices under this Agreement shall be delivered to the contact details stated on the Subscriber Application Form or to any updated address notified in writing.

2. The Client must promptly notify Terri Tracking of changes to its contact details, billing details, ownership information or other information relevant to the Service.

19. General

1. This Agreement, together with the Subscriber Application Form, the Acceptable Usage Policy, the Privacy Policy and any accepted quotation or service schedule, constitutes the entire agreement between the parties concerning the Service and supersedes prior agreements, written or oral, concerning the same subject matter.

2. No addition, variation or consensual cancellation shall be of force or effect unless in writing and signed by or on behalf of the parties, except where this Agreement expressly permits Terri Tracking to amend tariffs or operational charges by notice.

3. Terri Tracking may use authorised subcontractors, installation centres, recovery partners and service providers in performing its obligations.

4. The Client may not assign or transfer this Agreement without Terri Tracking's prior written consent. Terri Tracking may assign or transfer its rights and obligations to an affiliate or successor, subject to applicable law.

5. Failure by Terri Tracking to enforce a provision on any occasion shall not constitute a waiver of its right to enforce that provision later.

6. If any provision is held to be invalid or unenforceable, the remaining provisions shall continue in full force and effect to the extent permitted by law.

7. Words indicating the singular include the plural and vice versa, and words indicating one gender include the other genders; any reference to a natural person includes a body corporate, firm or association, and vice versa.

8. Headings are included for reference purposes only and will not affect interpretation.

20. Governing Law and Dispute Resolution

1. This Agreement shall be governed by the laws of Zimbabwe.

2. The parties shall first attempt in good faith to resolve any dispute through written notice and management-level discussion before commencing formal proceedings, except where urgent relief is required or immediate legal enforcement is otherwise permitted.

3. Subject to any mandatory rights available to a consumer, the courts of Zimbabwe shall have jurisdiction over disputes arising from this Agreement.

21. Client Important Acknowledgements

1. The Client acknowledges that the Service reduces but does not eliminate the risk of theft or loss; Terri Tracking does not guarantee recovery; GPS, telecommunications and internet services have inherent limitations; the Service is not insurance; the Client remains responsible for payment even where the Service is suspended for non-payment; and the Client is responsible for accurate contact, Vehicle and account information.

Acceptance

I, the undersigned, confirm that I am duly authorised to accept this Agreement on behalf of the Client, and that I have read and understood the contents of this Agreement, including the terms, conditions and product performance described herein. I acknowledge in particular the provisions relating to payment, suspension, hardware, warranty, service limitations, recovery, data protection, limitation of liability and termination.

My signature below indicates my agreement to be bound by these Terms and Conditions, forming a binding agreement between the Client and Terri Tracking, effective from the date of signature.

Full Name: _____

Company Name: _____

Subscription Payment Date: 1st, 25th or 30th

Signature: _____ Date: _____
Signed at: _____

Terri Technologies | info@territechnologies.com